

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JAMAL RENNIE,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, MICHAEL NANKERVIS
POLICE OFFICER-Shield No.: 24830, "JOHN DOES",
POLICE OFFICERS yet to be identified,

Defendants.

Index No.:

Date purchased: 9/ ¹⁴ /2022

Plaintiff designates
KINGS County
as the place of Trial.

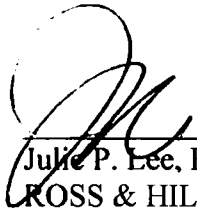
SUMMONS

The basis of the venue is
Place of Occurrence:
Brooklyn, NY

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
September ¹⁴, 2022



Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Brooklyn, New York 11241
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights.

The relief sought is monetary damages: compensatory damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from June 12, 2022 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:

JAMAL RENNIE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, MICHAEL NANKERVIS
POLICE OFFICER-Shield No.: 24830, "JOHN DOES",
POLICE OFFICERS yet to be identified,

Defendants.

-----X

Plaintiff herein, by his attorneys, Ross and Hill, Esqs., complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of Kings County, City and the State of New York.
2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT is a police force maintained and acting on behalf of defendant THE CITY OF NEW YORK to perform police duties and to protect the health, welfare, property, and safety of those lawfully residing within the jurisdiction of the City of New York.
4. At all times hereinafter mentioned, defendant MICHAEL NANKERVIS, POLICE OFFICER, Shield No.: 24830 was and still is a resident of the State of New York.

5. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK, its agents, servants, and employees operated, maintained, and controlled THE NEW YORK CITY POLICE DEPARTMENT including all the police officers thereof.

6. On June 28, 2022, plaintiff's Notice of Claim was made and served upon the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, said service occurring within ninety (90) days of the incident giving rise to this lawsuit.

7. On August 24, 2022, plaintiff's statutory municipal hearing was held pursuant to General Municipal Law Section 50-h.

8. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

9. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

10. That on June 12, 2022 at approximately 3:00 a.m., plaintiff was unlawfully stopped on Shepherd Avenue at or near its intersection with Pitkin Avenue, Brooklyn, New York.

11. That at said time, notwithstanding plaintiff's denial of any wrongdoing and despite the arresting Police Officer not being aware of any facts and circumstances existing at that time that would warrant a prudent and reasonable person to believe that a crime had been committed, said arresting Police Officer placed Plaintiff in handcuffs and falsely arrested him all without probable cause or justification.

12. That at said time, plaintiff was unlawfully detained.

13. That the arrest of plaintiff constituted false arrest.

14. The incident as aforescribed resulted from the grossly negligent, wanton, and malicious conducts of the defendant Police Officers, and without any of the plaintiff's conduct

contributing thereto.

15. The false arrest of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, suffering, humiliation and personal injury.

16. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-16 hereof with the same force and effect as though fully set forth herein at length.

18. After falsely arresting plaintiff, Police Officers handcuffed plaintiff and unlawfully detained plaintiff in police custody.

19. That plaintiff was taken to the 75th precinct.

20. Plaintiff was incarcerated and detained in a holding cell at the 75th Precinct against his will without probable cause or justification.

21. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

22. That the Police Officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

23. The unlawful detention of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

24. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-16 and 17-24 hereof with the same force and effect as though fully set forth herein at length.

26. That the unlawful detainment, arrest and imprisonment constituted false imprisonment.

27. That plaintiff was fingerprinted.

28. That plaintiff was photographed.

29. That plaintiff was placed in a cell.

30. That plaintiff was released from police custody at approximately 4:00 a.m. on June 12, 2022.

31. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

32. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

33. The false imprisonment of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

34. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-16, 17-24, and 25-34 hereof with the same force and effect as though fully set forth

herein at length.

36. That on June 12, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff was assaulted and battered by defendant MICHAEL NANKERVIS, POLICE OFFICER, Shield No.: 24830, and defendants POLICE OFFICERS JOHN DOES- as yet to be identified, who were acting within the scope of their employment with defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT at the aforesaid location.

37. That on June 12, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally, and wantonly and with deliberate disregard for plaintiff's interests.

38. By reason of said assault and battery the plaintiff was caused to suffer severe and serious bodily injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish, and psychological trauma, and continues to suffer same to date.

39. That defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not exercise reasonable care and diligence in the selection, engagement, employment, and training of their police officers, agents, servants, and employees and were negligent in the hiring, training, and retention of defendant MICHAEL NANKERVIS POLICE OFFICER, Shield No.: 24830, and defendants POLICE OFFICERS JOHN DOES- as yet to be identified, who assaulted, battered, and violated the civil rights of the plaintiff.

40. That the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT had prior knowledge of the inappropriate, unlawful, and improper conduct of defendant MICHAEL NANKERVIS POLICE OFFICER, Shield No.: 24830, and defendants POLICE OFFICERS JOHN DOES-as yet to be identified, and continued to employ them and allowed them to be in contact with the public at large.

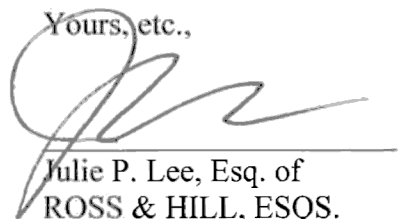
41. The incident as aforescribed resulted from the wanton and reckless conduct of the defendants, their agents, servants, and/or employees, and without any of the plaintiff's conduct contributing thereto.

42. As a result of the foregoing, plaintiff sustained compensatory damages in an amount that exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
September 14, 2022

Yours, etc.,

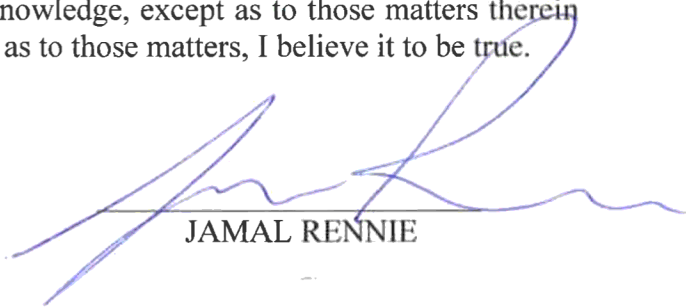


Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
Brooklyn, New York 11241
718-855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

JAMAL RENNIE, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.


JAMAL RENNIE

Sworn to before me this
14 day of September, 2022


Notary Public



Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

JAMAL RENNIE,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, MICHAEL
NANKERVIS POLICE OFFICER-Shield No.: 24830, "JOHN DOES", POLICE
OFFICERS yet to be identified,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

ROSS AND HILL, ESQS.
Attorneys for Plaintiff
Office and Post Office Address
16 Court Street, 35th Floor
NEW YORK, New York 11241
Tel (718) 855-2324
Fax (718) 855-4617

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for